

The Court finds that these allegations are sufficient to state a claim for punitive damages. Defendants' Motion to Strike is **DENIED**. The proposed order will be modified.

9:00 a.m. – Review Hearings

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

This matter is on calendar for a trial setting conference. The Court designates this as a Plan III case and intends to set the matter for trial no later than January 20, 2027. Defendants have posted jury fees. Plaintiff has a fee waiver on file, however the Order Granting Fee Waiver filed January 24, 2025, does not include jury fees and expenses (Item 4.a.(2)). Plaintiff is granted ten days leave to post jury fees or obtain a fee waiver. A failure to post jury fees or obtain a fee waiver in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

CAVALRY SPV I, LLC VS. DORSEY

CASE NUMBER: 24CVG-01994

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on March 4, 2026 indicating the matter would be dismissed no later than October 27, 2026. The matter is continued to **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on December 21, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the December 24, 2026 hearing. **No appearance is necessary on today's calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of dismissal. Notice of Settlement was filed on August 18, 2025. Today's hearing is the third time that the matter has been on calendar awaiting a CCP § 664.6 dismissal. Plaintiff has filed a nearly identical declaration each time seeking an additional 90 days to obtain signatures with no detail regarding the delay. The Court will issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel for failure to comply with the Court's Order dated May 26, 2026 which ordered the parties to take necessary steps to close the court file, failure to timely enter default per CRC 3.740(f), and failure to timely prosecute. The Order to Show Cause Re: Sanctions will be on calendar on **Monday, November 23, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. **No appearance is necessary on today's calendar.**

DAY VS. DAY

CASE NUMBER: 23CV-0203736

This matter is on calendar for review regarding status of the case and potential appointment of a referee. On June 22, 2026, the Court set the fair market value of the property at issue. The clerk sent the notice required per CCP § 874.317 to all co-tenants on July 27, 2026. A cotenant has 45 days from the date of the notice to give notice to the Court that it elects to buy all the interest of the cotenants that requested partition by sale. CCP § 874.317(b). The 45 day period has not yet passed.

Should no notice be filed by September 16, 2026, the clerk is directed to issue notice per CCP § 874.317(d)(3) that the Court orders partition by sale pursuant to CCP § 874.318(b) with the finding that Plaintiff has requested partition by sale and no cotenant has requested partition in kind. In making this finding, the Court notes that the property at issue is a single-family residence and therefore not reasonably capable of partition in kind. Should the CCP § 874.317(d)(3) notice issue, Plaintiff is reminded that a referee will be needed to proceed with the sale.